Independent Contractor Agreement - BitMine Immersion Technologies, Inc.

Test copy prepared from a publicly filed SEC exhibit. Original source: https://www.sec.gov/Archives/edgar/data/1829311/000149315225012968/ex10-1.htm

EXHIBIT 10.1
INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("Agreement") is made and entered into as of September 4, 2025, by and between BitMine Immersion Technologies, Inc., a Delaware corporation (the "Company"), and Ryan Ramnath, an individual (the "Contractor").

RECITALS
WHEREAS, the Company desires to engage the Contractor to perform certain services for the Company as provided in this Agreement; and WHEREAS, the Parties desire to enter into this Agreement whereby the Contractor will perform services for the Company.

AGREEMENT

1. Independent Contractor.
The Contractor is an independent contractor, engaged in an independent trade, occupation, or business, and free from the direction and control of the Company. Nothing contained in this Agreement shall create an employer and employee relationship.
The Contractor shall maintain and pay applicable taxes, insurance and other obligations and shall be responsible for costs and expenses associated with the Contractor's conduct.

2. Engagement; Services.
The Company engages the Contractor to provide services during the Term as set forth on Exhibit A. Contractor agrees to devote such business efforts and time as is reasonably required to fulfill the duties.

3. Term of Agreement.
The term of this Agreement shall be for one year from the Effective Date and shall automatically renew for successive Terms unless either Party gives written notice of its intention not to renew no later than 30 calendar days prior to the end of the Term or Renewal Term.

4. Compensation.
The Company agrees to compensate Contractor for the Services as set forth in Exhibit B. The Company will issue an IRS Form 1099 at year-end reflecting payments.

5. Termination.
5.1 This Agreement is terminable by the Company for any reason after the first 30 days upon written notice to the Contractor. Thereafter, this Agreement may be terminated for any reason by either Party upon 30 days prior written notice. Upon termination, the Contractor will be entitled to payment for Services rendered prior to the termination date.
5.3 The Company may terminate this Agreement at any time For Cause by giving written notice.

6. Confidential Information.
6.1 The Contractor will have access to Confidential Information concerning the Company and its clients. The Contractor agrees to hold in strict confidence all Confidential Information and will not disclose it outside the Company.
6.2 Confidential Information includes client/customer lists, product information, research, development, costs, profits, markets, strategies, forecasts, source code, algorithms, documentation and other data.
6.3 The Contractor agrees not to retain Confidential Information after termination and to return and destroy copies.

7. Non-Competition.
7.1 During the Term, any and all Renewal Terms, and for five years after termination, Contractor agrees not to use or disclose Confidential Information to solicit or take away Company contractors or customers and agrees to restrictions concerning competing business activities.
7.2 The terms of Section 7 shall survive termination.

8. Non-Circumvention.
During the term, the Company will share Confidential Information with Contractor. Contractor agrees not to circumvent or bypass the Company and agrees that the section survives termination.

9. Injunctive Relief.
Contractor agrees that a breach would be difficult to measure and that money damages could be inadequate. Accordingly, the Company may seek injunctive or other relief to restrain a breach.

10. Notices.
Notices shall be in writing and delivered personally, by overnight delivery, mail, facsimile, or electronic transmission to the addresses designated by the Parties.

11. Severability.
The Agreement is severable, and an invalid provision will not invalidate the remaining provisions.

12. Integration.
This Agreement constitutes the entire agreement and supersedes prior agreements. Amendments must be in writing and signed.

13. Nevada Law and Exclusive Jurisdiction.
This Agreement is governed by Nevada law, and disputes shall be brought in state or federal courts within Clark County, Nevada.

14. Attorneys' Fees.
The prevailing party may receive reasonable attorneys' fees and costs in an action concerning the Agreement.

15. Cooperation in Litigation.
The Contractor agrees to reasonably cooperate with the Company in litigation arising from events occurring prior to termination, subject to applicable reimbursement.

16. Legal Counsel; Mutual Drafting.
Each Party recognizes that this is a legally binding contract and acknowledges the opportunity to consult with legal counsel.

17. Binding on Successors.
This Agreement shall be binding upon successors and assigns of the Company. The Contractor may not transfer the Contractor's rights without consent.

18. Counterparts.
This Agreement may be executed in counterparts, including by electronic transmission.

19. Definition of Days.
"Days" refers to calendar days unless otherwise specified.

20. Conflict Waiver.
The Parties acknowledge that counsel representing the Company drafted the Agreement and that each Party had the opportunity to consult with counsel.

EXHIBIT A
CONTRACTOR SERVICES
Contractor shall provide services to the Company.

EXHIBIT B
CONTRACTOR COMPENSATION FOR SERVICES
Contractor shall be compensated at $10,000 per month payable on the last business day of each calendar month. Eligible reimbursable expenses may include travel and business expenses subject to approval.